

Sriram Dang v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 23 February 2012 · WRIT - C No. 7909 of 2012 · **Writ disposed; petitioner may apply afresh under clause 4.4.**

HEADNOTE

Mandamus to decide a representation for a fresh electricity connection after a landlord-dispute disconnection was refused on the merits. The petitioner had not completed an application for a new connection. The Court left it open to apply afresh; the licensee may consider that application in accordance with clause 4.4 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sriram Dang sought a mandamus directing the electricity authorities to decide his representation dated 12 January 2012. He asked for a fresh electricity connection after supply had been disconnected because of a dispute with his landlord. Counsel for the distribution licensee submitted that the petitioner had not made any application for a fresh connection after completing the prescribed formalities, and that no connection had therefore been released.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

fresh connection after landlord-dispute disconnection

HOLDING

Where a person seeks a fresh electricity connection after disconnection arising from a landlord dispute, and no completed application has been submitted, it is open to him to apply afresh; the licensee may consider that application in accordance with clause 4.4 of the U.P. Electricity Supply Code, 2005. A writ to decide an earlier representation is disposed of on that footing without directing a connection. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond

Mandamus to decide a representation for a fresh electricity connection after a landlord-dispute disconnection was refused on the merits. The petitioner had not completed an application for a new connection.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A FRESH CONNECTION ON THE REPRESENTATION DATED 12.1.2012 WITHOUT A COMPLETED APPLICATION UNDER CLAUSE 4.4

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NOT DECIDED — MERITS OF THE DISCONNECTION ARISING FROM THE LANDLORD DISPUTE

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